

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jaimie Vernon	Team: Squad #4	CCRB Case #: 201506842	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Tuesday, 06/30/2015 8:16 PM	Location of Incident: [REDACTED]	Precinct: 107	18 Mo. SOL 12/30/2016	EO SOL 12/30/2016	
Date/Time CV Reported Mon, 08/17/2015 10:42 AM	CV Reported At: CCRB	How CV Reported: Mail	Date/Time Received at CCRB Mon, 08/17/2015 10:42 AM		

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM Victor Reynoso	13469	942873	107 PCT
2. POM Julio Batista	17763	951530	107 PCT
3. An officer			107 PCT

Officer(s)	Allegation	Investigator Recommendation
A. An officer	Discourtesy: An officer spoke discourteously to § 87(2)(b) [REDACTED]	[REDACTED]
B.POM Julio Batista	Discourtesy: PO Julio Batista spoke discourteously to § 87(2)(b) [REDACTED]	[REDACTED]
C.POM Julio Batista	Force: PO Julio Batista used physical force against § 87(2)(b) [REDACTED]	[REDACTED]
D.POM Victor Reynoso	Force: PO Victor Reynoso used physical force against § 87(2)(b) [REDACTED]	[REDACTED]
E. An officer	Abuse: An officer threatened § 87(2)(b) [REDACTED] with the use of force.	[REDACTED]
F.POM Victor Reynoso	Abuse: PO Victor Reynoso did not obtain medical treatment for § 87(2)(b) [REDACTED]	[REDACTED]
G.POM Julio Batista	Abuse: PO Julio Batista did not obtain medical treatment for § 87(2)(b) [REDACTED]	[REDACTED]

Case Summary

On August 17th 2015, the CCRB received the complaint of § 87(2)(b) who mailed it to the CCRB. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

On September 17th, 2015, § 87(2)(b) provided an in-person statement to the CCRB in which he alleged the following (Board Review 02):

On June 30, 2015, around 4:00PM, § 87(2)(b) had a dispute with his adoptive father, § 87(2)(b) at their home at § 87(2)(b) in Queens. § 87(2)(b) had filed an Order of Protection against § 87(2)(b)'s coming onto the premises. § 87(2)(b) called 911 to report that § 87(2)(b) was violating the Order of Protection, but § 87(2)(b) left the house before the police came. Around 8:00PM, § 87(2)(b) returned to the house retrieve some belongings. He got into another dispute with his father, and the § 87(2)(b) called 911 again.

PO Julio Batista and PO Victor Reynoso of the 107th Precinct responded to the scene. When they learned that § 87(2)(b) was complaining about § 87(2)(b) being at the house again, one of the officers (he did not know which) asked § 87(2)(b) “You’re a grown-ass man; why are you still living with your parents?” (**Allegation A**).

PO Reynoso then told § 87(2)(b) that he was in violation of an Order of Protection and asked § 87(2)(b) to turn around. § 87(2)(b) did so and was handcuffed. However, when he complained that his handcuffs were too tight, PO Batista allegedly told him to “Shut the fuck up” (**Allegation B**). He also asked § 87(2)(b) “Are you threatening us?” and tripped § 87(2)(b) who fell to the ground (**Allegation C**).

As § 87(2)(b) laid face-down on the ground, PO Batista kicked him multiple times in his ribs, while PO Reynoso kicked him multiple times in the back (**subsumed within Allegation C, Allegation D**). As the officers kicked him, § 87(2)(b) could hear one of them say, “Release the handcuffs so if he runs, we can shoot him” (**Allegation E**). The officers then brought § 87(2)(b) up, whereupon they both punched him multiple times in the face (**subsumed within Allegations C and D**).

After the officers finished assaulting § 87(2)(b) they escorted him to their vehicle and transported him to the 107th Precinct stationhouse. While there, § 87(2)(b) asked to go to a hospital, but both officers ignored his request (**Allegations F and G**). PO Reynoso escorted § 87(2)(b) to Central Booking, where § 87(2)(b) saw a doctor and requested medical treatment. He was taken to § 87(2)(b).

§ 87(2)(b) was arrested for § 87(2)(b) (Board Review 03).

Video Footage

§ 87(2)(b) noted that his neighbors, § 87(2)(b) and § 87(2)(b) recorded the incident with their home surveillance camera. However, the § 87(2)(b) refused to provide him with the footage. § 87(2)(b) confirmed to the investigator that her camera did capture the incident, but the footage had been erased after thirty days. Because of this, the footage had been erased prior to the CCRB's receipt of this complaint. § 87(2)(b) also explained that she made attempts to download the footage in the days after the incident, but she was unsuccessful.

Mediation, Civil and Criminal Histories

This complaint is unsuitable for mediation due to § 87(2)(b)'s arrest. § 87(2)(b) [§§ 86(1)(2)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Civilian and Officer CCRB Histories

§ 87(2)(g) § 87(2)(b) has made no other CCRB complaints.

PO Batista has been a member of the service for three years, and there are no substantiated allegations against him. PO Reynoso has served for eight years, and there are no substantiated allegations against him.

Potential Issues

The investigation has made several attempts to contact the members of § 87(2)(b)'s family who witnessed the incident – § 87(2)(b) and § 87(2)(b) – but has only been able to reach § 87(2)(b) § 87(2)(b)'s adoptive mother, who has provided the CCRB with a brief statement but who has been uncooperative with providing the CCRB with a more detailed statement (Board Review 06; see Investigative Actions).

An attempt was also made to obtain statements by conducting field work at the location. However, no one was present at the § 87(2)(b) home.

Attempts were made to contact the neighbors who witnessed the incident. Of them, only § 87(2)(b) provided a sworn statement, which was taken at her home at § 87(2)(b) on October 23rd, 2015 (Board Review 07). § 87(2)(b)'s husband, § 87(2)(b) has also been uncooperative with the CCRB (Board Review 08; see Investigative Actions).

Findings and Recommendations

Allegations not pleaded

- § 87(2)(g) [REDACTED]

Allegation A: An officer spoke discourteously to § 87(2)(b)

Allegation E: An officer threatened § 87(2)(b) with the use of force.

§ 87(2)(b) alleged that, when PO Batista and PO Reynoso first arrived and learned that § 87(2)(b) was violating an Order of Protection, one of the officers told him, “You’re a grown-ass man; why are you still living with your parents?” He did not remember which one of the officers made this remark. § 87(2)(b) also alleged that as PO Reynoso and PO Batista were kicking him, either officer said, “Release the handcuffs so if he runs, we can shoot him”. As § 87(2)(b) was lying on the ground face-down, he did not see which officer made that remark (Board Review 02).

Both PO Batista and PO Reynoso denied making either remark. They both denied using any profanity toward § 87(2)(b) or any threat of force (Board Review 09 and Board Review 10). However, both officers stated that it was PO Reynoso who chiefly interacted with § 87(2)(b) before the physical struggle.

§ 87(2)(b) did not see when the officers first arrived and did not witness the beginning of their interaction with § 87(2)(b) but she did not recall the officers using profanity toward § 87(2)(b) during the incident. She also did not hear either officer threaten to shoot § 87(2)(b) (Board Review 07).

§ 87(2)(g) [REDACTED]

Allegation B: PO Julio Batista spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that when he complained that his handcuffs were too tight, PO Batista told him, “Shut the fuck up” (Board Review 02).

Both PO Batista and PO Reynoso denied that PO Batista made that remark or used any profanity toward § 87(2)(b) (Board Review 09 and Board Review 10).

§ 87(2)(b) stated that she did not hear either of the officers say “Shut the fuck up” to § 87(2)(b) or use any profanity at all during the incident (Board Review 07). However, she was not present during the entire incident, having been inside her house during the beginning and the end.

§ 87(2)(g)
[REDACTED]

§ 87(2)(b) § 87(2)(g) initially stated that when he complained that his handcuffs were too tight, PO Batista asked, “Are you threatening us?” When § 87(2)(b) said he was not, PO Batista tripped him. It was in another iteration of this exchange that he alleged that PO Batista said, “Shut the fuck up”.

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

Allegation C: PO Julio Batista used physical force against § 87(2)(b)

Allegation D: PO Victor Reynoso used physical force against § 87(2)(b)

§ 87(2)(b) alleged that after PO Batista said either “Shut the fuck up” or “Are you threatening us?”, he tripped § 87(2)(b) who fell face-down, hitting his right elbow. PO Batista then kicked him several times in the right side of his ribs and PO Reynoso kicked him several times in his lower back. The officers stood him up and placed him in a nearby chair in the driveway. Both officers then punched § 87(2)(b) in the face for what felt like five minutes. After they finished punching him, the officers asked “You good?” and escorted him to their RMP. § 87(2)(b) denied resisting the officers, but said that he initially tried to hold his hands to his face to block the officers’ blows. He alleged that the officers fractured his ribs and his cheekbone (Board Review 02).

PO Batista and PO Reynoso both roundly denied tripping, punching, or kicking § 87(2)(b) at any point during the incident. They both stated that they attempted to grab § 87(2)(b)’s arms and place them behind his back to handcuff him (Board Review 09 and Board Review 10).

Both officers explained that § 87(2)(b) was initially handcuffed because he was accused of violating an Order of Protection filed by § 87(2)(b). PO Batista spoke with § 87(2)(b) and § 87(2)(b) about the documentation while PO Reynoso spoke with § 87(2)(b) trying to explain to him that he had to leave his parents’ house. However,

§ 87(2)(b)'s family members struggled to find a copy of the actual Order of Protection, instead giving PO Batista several Domestic Incident Reports. Because of this, PO Batista told PO Reynoso to uncuff § 87(2)(b) as it did not appear that the § 87(2)(b) had a valid Order of Protection against him. § 87(2)(g)

Immediately after PO Reynoso took the cuffs off of § 87(2)(b) § 87(2)(b) "took a swing" at PO Reynoso's head with his right arm. He threatened to kill PO Reynoso as he had threatened to kill his father at the start of the incident. As a response, PO Reynoso grabbed hold of § 87(2)(b)'s right arm, and PO Batista rushed over to grab § 87(2)(b)'s left arm. § 87(2)(b) resisted by trying to pull his arms away from the officers and by trying to wriggle out of the officers' grasps. He also yelled and cursed at the officers, saying "Fuck you!"

As a tactical measure, and with an eye toward their safety, the officers brought § 87(2)(b) to the ground face-down. They had to hold him to the ground with their arms and hands as he was still wriggling and squirming. They were eventually able to rear-cuff him without using any other force. Once § 87(2)(b) was handcuffed, he stopped resisting, and the officers stood him up. When they saw the valid Order of Protection, they placed him in their RMP and drove him to the 107th Precinct stationhouse.

Mrs. § 87(2)(b) stated that she saw an officer kick § 87(2)(b) in his side, but she did not provide any additional information (Board Review 06).

§ 87(2)(b) stated that she saw the officers attempt to grab and handcuff § 87(2)(b) but they were somehow unable to, as § 87(2)(b) would not willingly surrender to them. She then saw one of the officers bend down to tie his shoe. When he did so, § 87(2)(b) tried to punch him, and the officer got up and punched § 87(2)(b) in the neck. She did not see that officer punch § 87(2)(b) more than once, and did not see the other officer punch him at all.

She did not see either officer kick § 87(2)(b) but recalled hearing from one of § 87(2)(b)'s relatives that force was used to place him in the officers' vehicle. She did not see this for herself as she had gone back inside her house by that time. She did not see § 87(2)(b) brought to the ground. She did see that, when the other officer attempted to handcuff § 87(2)(b) he tried to pull his arm away. § 87(2)(b) also cursed at the officers, yelling "Those motherfuckers!" (Board Review 07).

The Command Log entry for § 87(2)(b)'s arrest notes: "Force used/prisoner fought officers to avoid being handcuffed and threatened to kill them" (Board Review 11).

§ 87(2)(b)'s arrest photo does not show any obvious injuries. However, there is a mark underneath his left eye (Board Review 12).

NYPD Patrol Guide Procedure 203-11, regarding the use of force, mandates that officers must only the minimum amount of force necessary to overcome resistance. Additionally, officers

should rear-cuff persons who are under arrest or otherwise to be taken into custody to reduce the potential for resistance (Board Review 13).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

The medical records obtained from § 87(2)(b) show that § 87(2)(b) suffered only minor injuries. § 87(2)(b) was taken to the hospital only six hours after the incident. He complained of pain to his chest, face, and elbow, but X-rays showed that he suffered no fractures or traumatic injuries. He rated his pain a “2” on a scale of 10, and was prescribed Tylenol and Zoloft for his pain (Board Review 14).

§ 87(2)(g)

§ 87(2)(g)

Allegation F: PO Julio Batista did not obtain medical treatment for § 87(2)(b)

Allegation G: PO Victor Reynoso did not obtain medical treatment for § 87(2)(b)

§ 87(2)(b) alleged that when he was taken to the 107th Precinct stationhouse, he complained to both PO Batista and PO Reynoso that he was in pain and requested to go to a hospital. However, both officers ignored him, leaving him to request an ambulance independently when he was examined at Central Booking (Board Review 02).

Both PO Batista and PO Reynoso denied ignoring § 87(2)(b)'s request for medical treatment. Instead, both officers stated that their supervisor, Lt. Weitzman, who was at the front desk and so would have been the first point of contact when the officers arrived at the stationhouse, called for an ambulance when § 87(2)(b) complained that he was in pain and needed to go to a hospital. When the ambulance arrived, however, § 87(2)(b)

refused medical aid. Both officers saw § 87(2)(b) sign a waiver declaring that he did not wish to be treated by the ambulance. Neither officer knew if § 87(2)(b) ever went to a hospital after going to Central Booking (Board Review 09 and Board Review 10).

§ 87(2)(g)

- 1) The original IAB Log, reported by Lt. Weitzman, states that § 87(2)(b) refused medical attention to the FDNY EMT with shield number § 87(2)(b) (Board Review 01).
- 2) The Command Log entry (where § 87(2)(b) is listed as “§ 87(2)(b) notes that the prisoner “RMA” to the FDNY EMT with shield number § 87(2)(b) at approximately 10:40PM (Board Review 11).
- 3) The SPRINT shows that EMS was called to the 107th Precinct stationhouse at 9:57PM, by which point § 87(2)(b) was in custody for more than an hour (Board Review 15).
- 4) PO Reynoso noted contemporaneously in his memo book that § 87(2)(b) refused medical aid at approximately 10:50PM. He wrote on his fly sheet that FDNY bus #§ 87(2)(b) with EMT with shield #§ 87(2)(b) arrived at the stationhouse. Ambulance Call Report #§ 87(2)(b) was prepared (Board Review 16).

§ 87(2)(g)

Squad: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date